

TENTATIVE RULING

Case: **Oliveira v. Avila**
Case No. CV2025-3371

Hearing Date: **February 6, 2026** **Department Two** **1:30 p.m.**

Defendant Ma Veronica Diaz Avila's motion to set aside default and default judgment is **DENIED**. (Code Civ. Proc., §§ 473, subds. (b) & (d), 473.5, 128, subd. (a)(8), 86, subd. (b)(3).) First, defendant failed to file a proof of service at least five court days before the hearing, showing that the motion was timely served on plaintiff Lucia B. Oliveira, Trustee, Cosme L. Oliveira and Lucia B. Oliveira Revocable Trust. (Cal. Rules of Court, rule 3.1300(c); Code Civ. Proc., § 1005, subd. (b).) Second, defendant has not shown that the default and default judgment were entered against her through "her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b); *Northridge Financial Corp. v. Hamblin* (1975) 48 Cal.App.3d 819, 824; Avila decl.) Third, the motion was not "accompanied by an affidavit showing under oath that [defendant's] lack of actual notice in time to defend the action was not caused by...her avoidance of service or inexcusable neglect." (Code Civ. Proc., § 473.5, subd. (b); Avila decl.) Finally, defendant failed to establish that the judgment is void or was obtained through extrinsic fraud, mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 473, subd. (d), 128, subd. (a)(8), 86, subd. (b)(3); *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Avila decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vorhees v. Elfen**
 Case No. CV2024-2427

Hearing Date: **February 6, 2026** **Department Eleven** **9:00 a.m.**

Defendant Kristie Lynn Elfen’s motion for judgment on the pleadings is **GRANTED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 438, subd. (c)(1)(B).) Plaintiff James Patrick Vorhees is not a person identified in Code of Civil Procedure section 377.60. (See Code Civ. Proc., § 377.60; Complaint, p. 1.) Further, plaintiff does not allege that defendant caused the death of another person. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 390; Code Civ. Proc., § 377.60; Complaint, pp. 1 & 3.) Therefore, the complaint does not state facts sufficient to constitute a cause of action for wrongful death against defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The Court does not permit leave to amend because there is no “reasonable possibility...plaintiff can state a good cause of action.” (*Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.)

The jury trial, set for March 2, 2026, and the trial readiness conference, set for February 9, 2026, are **VACATED**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.